

**Superior Court of the State of California
County of Orange**

DEPT C13 TENTATIVE RULINGS

The Honorable Nico A. Dourbetas

Civil Court Reporters: The Court does not provide court reporters for law and motion hearings. Please see the Court's website for rules and procedures for court reporters obtained by the Parties.

Tentative Rulings: The Court will endeavor to post tentative rulings on the Court's website by 4 p.m. on the day before the motion is set to be heard. Do NOT call the Department for a tentative ruling if none is posted. **The Court will NOT entertain a request for continuance or the filing of further documents once a tentative ruling has been posted.**

Submitting on the Tentative Ruling: If ALL counsel intend to submit on the tentative ruling and do not wish oral argument, please advise the Court's clerk or courtroom attendant by calling (657) 622-5213. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling and the prevailing party shall give Notice of Ruling and prepare an Order for the Court's signature if appropriate under CRC 3.1312. **Please do not call the Department unless ALL parties submit on the tentative ruling.**

Non-Appearances: If no one appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or whether the tentative ruling shall become the final ruling.

Appearances: Counsel may appear by video on Zoom.

1. Visit <https://www.occourts.org/media-relations/aci.html>

Date: September 11, 2026

1	Hull vs. General Motors, LLC 2024-01391953	1. Motion for Attorney Fees 2. Order to Show Cause re: Dismissal on Settled Case The motion of plaintiff Shawn Hull for an order awarding prevailing party attorneys' fees and costs from defendant General Motors, LLC is GRANTED WITH THE EXCEPTION of the request for the application of a multiplier of .10.
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		Plaintiff is awarded attorneys' fees of \$42,883.00 plus costs of \$2020.46. Discussion. Plaintiff Shawn Hull moves for an order awarding prevailing party attorneys' fees and costs as provided in the offer to compromise from defendant General Motors, LLC that he accepted. Specifically, he seeks attorneys' fees of \$42,883.00 plus a multiplier of .10, which would be \$4288.30, for a total of \$47171.30. He also seeks costs of \$2020.46, although he filed a memo of costs claiming this amount at the same time that he filed the instant motion on June 22, 2026. (See ROA 113.) Defendant opposes the motion, first contending that the motion is untimely as not brought within 45 days of dismissal, citing <i>Hatlevig v. General Motors LLC</i> (2026) 118 Cal.App.5th 644. It also contends that the hours and fees claimed by plaintiff's counsel are excessive and unreasonable and that counsel should be awarded no more than \$11,384.56 in fees and \$716.20 in costs. With respect to defendant's contention that the motion for fees is untimely, <i>Hatlevig v. General Motors LLC</i>, supra, 118 Cal.App.5th 644, states the following at p. 649: Rule 3.1702 of the California Rules of Court governs motions for attorney fees in civil cases. [Citations.] A motion for fees incurred up to the time of judgment in the trial court "must be served and filed within the time for filing a notice of appeal under rules 8.104 and 8.108 in an unlimited civil case." [Citation.] With exceptions not relevant to this appeal, the time for filing a notice of appeal is the earlier of 60 days after service of notice of entry of judgment or 180 days after entry of judgment. [Citation.] A voluntary dismissal is "effectively a 'judgment' " within the meaning of the rule prescribing the time to appeal. [Citations.] Thus, "the clock starts to run [on the time to move for attorney fees] from either the service of notice of entry of
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		judgment or dismissal (starting a 60-day clock), or if no such notice is given, the entry of judgment or dismissal (starting a 180-day clock).” [Citation.] Here, although the parties settled the case, the case has not yet been dismissed. In fact, the Court has set a hearing on an OSC re: settled case to be heard at the same time as the instant motion. The settlement between the parties consists of the statutory offer to compromise that the defendant made on October 10, 2025 and plaintiff accepted on November 10, 2025. (Exhibit 1 to moving papers.) In part, it provides for “[p]laintiff’s attorney’s fees, expenses, and costs that have been reasonably incurred pursuant to California Civil Code § 1794(d) [that] may be determined by the Court via noticed motion.” It also provides that, for any such motion, defendant will agree that plaintiff is the prevailing party. Courts use the lodestar method to calculate an award of attorneys’ fees under this subdivision. <i>Mikhaeilpoor v. BMW of N. America, LLC</i> (2020) 48 Cal.App.5th 240, 247 Under the lodestar method, “the trial court must initially determine the actual time expended and then ‘ascertain whether under all the circumstances of the case the amount of actual time expended and the monetary charge being made for the time expended are reasonable.’ [Citation.]” <i>Mikhaeilpoor v. BMW of N. America, LLC</i>, supra, 48 Cal.App.5th at p. 247. Factors to be considered include, but are not limited to, the complexity of the case and procedural demands, the attorney skill exhibited and the results achieved. <i>Ibid.</i> The prevailing party and fee applicant bears the burden of showing that the fees incurred were “reasonably necessary to the conduct of the litigation,” and were “reasonable in amount.” <i>Ibid.</i> If the prevailing party fails to meet this burden, and the court finds the time expended or amount charged is not reasonable under the circumstances, then the
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		court must take this into account and award attorney fees in a lesser amount. Ibid. The amount of attorney fees awarded under the lodestar method may be increased or decreased. Mikhaeilpoor v. BMW of N. America, LLC, supra, 48 Cal.App.5th at p. 247. Such an adjustment is commonly referred to as a “fee enhancement” or “multiplier.” Ibid. However, the trial court is neither foreclosed from nor required to award a multiplier. Ibid. The factors that the trial court may consider in adjusting the lodestar figure include the novelty and difficulty of the questions involved, and the skill displayed in presenting them; the extent to which the nature of the litigation precluded other employment by the attorneys; and the contingent nature of the fee award, both from the point of view of eventual victory on the merits and the point of view of establishing eligibility for an award. Id. at p. 248. Attorney David N. Barry submitted the billing entries for the attorneys working on the file as Exhibit 1 to his declaration. While he sets forth the billing rates for the various attorneys working on the file in his declaration, the moving papers indicate that these attorneys spent a total of 76.3 hours on the file, as follows: • David N. Barry – 34.4 hours at \$695/hr. • Kristopher Storti -- .8 hour at \$600/hr. • Andrew Materia -- .6 hour at \$550/hr. • C. Richard Lara -- .8 hour at \$375/hr. • Brian J. Kim – 39.7 hours at \$450/hr. To the extent that defendant contends that plaintiffs are seeking excessive fees, the Court’s file shows that the case involved routine hearings as well as hearings on discovery motion. It also indicates that the parties were preparing for trial because motions in limine and oppositions were filed. Viewed in this light, both the number of hours and the billing rate claimed by plaintiff’s counsel are reasonable.
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		On the other hand, nothing in the file suggests that an enhancement is appropriate in this case. Both parties indicate that they regularly litigate in this area of the law. With respect to the issue of costs, as previously noted, plaintiff filed a memo of costs at the same time that he filed this motion. Like the motion, it claims costs of \$2020.46, but defendant did not affirmatively move to strike or tax those costs. ***OSC RE: Dismissal of Settled Case is continued to March 15, 2027 at 9 AM. Moving Party shall give notice of all the above.
2	Landeroz vs. Tustin Hills Healthcare, Inc. 2025-01514947	1. Demurrer to Amended Complaint 2. Motion to Strike Portions Of Complaint MOTION #1: The general demurrer of defendant Tustin Hills Healthcare, Inc., dba The Hills Post Acute, to the second cause of action for dependent adult abuse and neglect in the second amended complaint of plaintiff Domingo Alcala Landeroz, individually and as the successor-in-interest to The Estate of Maria Del Refugio Alcala Landeros is SUSTAINED, without leave to amend. Discussion. Defendant demurs generally and specially on the ground of uncertainty to the second cause of action in the second amended complaint. Defendant contends that the cause of action, which is brought under the Elder and Dependent Adult Civil Protection Act and seeks enhanced (or heightened) remedies, does not contain sufficient facts to set forth the claim and is not pled with the specificity required for a